



**U.S. Customs and
Border Protection**

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PUBLIC VERSION

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RE: EAPA Consolidated Investigation 7887: Notice of Determinations as to Evasion

To the Counsel and Representatives of the above-referenced Entities:

Pursuant to an examination of the record in consolidated Enforce and Protect Act (EAPA) Investigation 7887, U.S. Customs and Border Protection (CBP) has determined there is substantial evidence that Kingka Cabinet Inc. (Kingka) entered merchandise covered by the antidumping duty (AD) order A-570-084 and countervailing duty (CVD) order C-570-085¹ on quartz surface products (QSP) from the People's Republic of China (China), into the customs territory of the United States through evasion. Specifically, we find that substantial evidence demonstrates that Kingka imported Chinese-origin QSP into the United States and misrepresented the country of origin as Thailand. As a result, no cash deposits were applied to

¹ See *Certain Quartz Surface Products from the People's Republic of China: Antidumping and Countervailing Duty Orders*, 84 FR 33053 (Department of Commerce, July 11, 2019) (the *Orders*).

Kingka's entries of QSP from Thailand. In addition, we find that there is not substantial evidence on the record that demonstrates Broadcreek Marketing Associates, Inc. (BMA), Dorado Surfaces LLC (Dorado), and Multistone Enterprises Inc. & Multistone Imports Inc. (collectively, Multistone) entered Chinese-origin QSP into the United States that were transshipped through Thailand during the period covered by this EAPA investigation.

Background

Cambria Company LLC (Cambria) filed four EAPA allegations against the importers named above on December 16, 2023.² On February 21, 2024, the Trade Remedy Law Enforcement Directorate (TRLED), within CBP's Office of Trade, acknowledged receipt of the properly filed EAPA allegations.³ As such, the entries covered by the period of investigation (POI) are those entered for consumption, or withdrawn from warehouse for consumption, from February 21, 2023, through the pendency of these investigations.⁴

TRLED found the information provided in the allegations reasonably suggested that BMA, Dorado, Kingka, and Multistone entered QSP into the customs territory of the United States through evasion. Consequently, CBP initiated investigations with respect to these companies on March 13, 2024, pursuant to Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015, commonly referred to as the "Enforce and Protect Act" or "EAPA."⁵

On June 11, 2024, after evaluating all of the information gathered in the administrative record at that time, CBP determined that reasonable suspicion existed that the QSP imported into the United States from Thailand by BMA, Dorado, Kingka and Multistone were manufactured in China, and imposed interim measures.⁶ Specifically, TRLED based these determinations on several elements introduced through the course of these investigations, including information provided in the Allegations, multiple discrepancies in the importers' CF28 responses, Multistone's lack of a CF28 response, and additional information gathered by CBP during the

² See Cambria's letters, "Quartz Surface Products from the People's Republic of China: Request for an Investigation under the Enforce and Protect Act of Broadcreek Marketing Associates, Inc.," dated December 16, 2023; "Quartz Surface Products from the People's Republic of China: Request for an Investigation under the Enforce and Protect Act of Dorado Surfaces LLC," dated December 16, 2023; "Quartz Surface Products from the People's Republic of China: Request for an Investigation under the Enforce and Protect Act of Kingka Cabinet Inc.," dated December 16, 2023 (Kingka Allegation); and "Quartz Surface Products from the People's Republic of China: Request for an Investigation under the Enforce and Protect Act of Multistone Enterprises, Inc.," dated December 16, 2023. Collectively, we refer to these submissions as the Allegations. Except for Exhibit 4, which is specific to each importer, the four Allegations are nearly identical.

³ See CBP's Email, "EAPA 7887: Receipt of the Allegations," dated February 21, 2024.

⁴ See 19 CFR 165.22.

⁵ See CBP Memorandum, "Initiation of Investigations: EAPA Consolidated Case Number 7887," dated March 13, 2024 (Initiation Memorandum).

⁶ See CBP's Email, "U.S. Customs and Border Protection EAPA Investigation 7887: Interim Measures," dated June 11, 2024.

course of the investigations.⁷ Consequently, based upon the information stated above, CBP issued the NOI on June 18, 2024.⁸

After the NOI, CBP issued Requests for Information (RFIs) to BMA, Dorado, Kingka, and Multistone, pursuant to section 165.5 of the EAPA Regulations.⁹ In the RFIs, CBP requested the following information: (1) information about each company's corporate structure and affiliations; (2) information about each company's accounting and financial practices; (3) information about their procurement and sales practices; and (4) reconciliations, to tie their financial statements to their sales of covered merchandise. BMA, Dorado, and Multistone provided timely responses to the RFIs.¹⁰ Additionally, CBP issued supplemental RFIs (SRFI) to BMA, Dorado, and Multistone,¹¹ to which they timely responded.¹²

Kingka's response to the RFI was due July 11, 2024; however, Kingka did not respond, nor did it request an extension of time to respond.¹³ CBP provided Kingka a second opportunity to respond to the RFI.¹⁴ On July 12, 2024, Kingka sent an email to CBP providing bracketing comments on its CF28 response; however, these bracketing comments were due June 14, 2024.¹⁵ On July 16, 2024, Kingka sent a second email to CBP, that contained bank statements and some sales quantity information; however, no narrative accompanied the documents to address the deficiencies in Kingka's CF28 response that it submitted on April 14, 2024.¹⁶ Because these

⁷ See CBP's Letter, "EAPA Consolidated Case 7887: Notice of Initiation of Investigations and Interim Measures," dated June 18, 2024 (the NOI). See also CBP's Memorandum to the File, "EAPA Cons 7887: Information Concerning Thai Exporters' Links to Chinese Quartz Surface Product Producers," dated June 18, 2024; CBP's Memorandum to the File, "EAPA Cons 7887: Information Concerning U.S. Importers," dated June 18, 2024; and CBP's Memorandum to the File, "EAPA Cons 7887: Information Concerning Legend Quartz Co., Ltd.," dated June 18, 2024.

⁸ See, generally, the NOI.

⁹ See CBP's Letter to BMA, "EAPA Consolidated Case 7887: Request for Information from Broadcreek Marketing Associates," dated July 1, 2024; CBP's Letter to Dorado, "EAPA Consolidated Case 7887: Request for Information from Dorado Surfaces LLC," dated June 28, 2024; CBP's Letter to Kingka, "EAPA Consolidated Case 7887 Request for Information from Kingka Cabinet Inc.," dated June 28, 2024 (Kingka's RFI); and CBP's Letter to Multistone, "EAPA Consolidated Case 7887: Request for Information," dated July 1, 2024.

¹⁰ See BMA's Letter, "Investigation – EAPA Case 7887, Broadcreek Marketing Associates, Inc., Response to Request for Information," dated July 29, 2024; Dorado's Letter, "EAPA Cons. Case No 7887: Dorado Surfaces Response to Request for Information," dated July 25, 2024; and Multistone's Letter, "Multistone – Response to RFI," dated July 22, 2024.

¹¹ See CBP's Letter to BMA, "EAPA Case 7887: Supplemental Request for Information," dated September 16, 2024; CBP's Letter to Dorado, "EAPA Case 7887: Supplemental Request for Information," dated September 20, 2024; and CBP's Letter to Multistone, "EAPA Case 7887: Supplemental Request for Information," dated September 16, 2024.

¹² See BMA's Letter, "Investigation – EAPA Case 7887, Broadcreek Marketing Associates, Inc., Supplemental RFI Response," dated October 3, 2024; Dorado's Letter, "EAPA Cons. Case No. 7887: Dorado Surfaces Response to Supplemental Request for Information," dated October 4, 2024; and Multistone's Letter, "Multistone – Response to SRFI," dated October 7, 2024.

¹³ See Kingka's RFI.

¹⁴ See CBP's Letter to Kingka, "EAPA Consolidated Case 7887: Request for Information from Kingka Cabinet Inc.," dated July 12, 2024.

¹⁵ See CBP's Memorandum, "EAPA 7887: Bracketing Comments on CF28 Responses," dated June 18, 2024, which contains emails providing the importers which submitted CF28 responses, including Kingka, two opportunities to submit bracketing comments on their responses, with the second due date being June 14, 2024.

¹⁶ CBP issued a CF28 to Kingka on March 20, 2024. See CF28 Issued to Kingka, dated March 20, 2024. Kingka provided a timely, but incomplete response to the CF28 on April 15, 2024. See Kingka CF28 response, dated April 15, 2024. For further discussion and analysis of Kingka's CF28 response, see the NOI at 8 – 10.

documents were submitted far past the due date for Kingka's CF28 response, and because these documents were not properly submitted in CBP's case management system, as requested, these documents were not placed on the record. However, on July 26, 2024, CBP provided Kingka a third and final opportunity to respond to the RFI.¹⁷ Kingka did not respond to CBP's third attempt to obtain a response to the RFI, nor did Kingka request an extension of time to respond.

Pursuant to section 165.5 of the EAPA Regulations,¹⁸ CBP issued RFIs to foreign manufacturers Alilia Home (Thailand) Co., Ltd. (Alila), Just Stone Industry Thailand Co. (Just Stone), Taimei Stone Co., Ltd. (Taimei), and Thai Summit Stone Co., Ltd. (Thai Summit Stone).¹⁹ In the RFIs, CBP requested the following information from the foreign manufacturers: (1) information about each company's corporate structure and affiliations; (2) information about each company's accounting and financial practices; (3) information about their procurement and sales practices; (4) information concerning their production process and purchase of raw materials; and (5) reconciliations, to tie their financial statements to their production and sales of covered merchandise. Alila, Just Stone, Taimei, and Thai Summit Stone provided timely responses to the RFIs.²⁰ In addition, CBP issued SRFIs to Alila, Just Stone, Taimei, and Thai Summit Stone,²¹ to which they timely responded.²²

Between November 5 – 21, 2024, CBP conducted verification of the submissions of Alila, Just Stone, Taimei, and Thai Summit Stone.²³

¹⁷ See CBP's Letter to Kingka, "EAPA Consolidated Case No. 7887: Kingka Cabinet Inc. Request for Information," dated July 26, 2024.

¹⁸ 19 C.F.R. § 165.5.

¹⁹ See CBP's Letter to Alila, "EAPA Case 7887: Request for Information from Alila Home (Thailand) Co., Ltd.," dated June 26, 2024; CBP's Letter to Just Stone, "EAPA Consolidated Case 7887: Request for Information from Just Stone Industry Co.," dated June 26, 2024; CBP's Letter to Taimei, "EAPA Consolidated Case 7887: Request for Information from Taimei Stone Co., Ltd.," dated June 26, 2024; and CBP's Letter to Thai Summit Stone, "EAPA Consolidated Case 7887: Request for Information from Thai Summit Stone Co., Ltd.," dated June 26, 2024.

²⁰ See Alila's Letter, "Response to Request for Information EAPA case no. 7887," dated August 15, 2024 (Alila's RFI Response); Just Stone's Letter, "EAPA Case Number 7887: Response to the Request for Information for Just Stone Industry (Thailand) Co., Ltd.," dated July 30, 2024 (Just Stone's RFI Response); Taimei's Letter, "EAPA Consolidated Case No. 7887 Responses to Request For Information," dated July 31, 2024 (Taimei's RFI Response); and Thai Summit Stone's Letter, "EAPA Case Number 7887: Response to the Request for Information for Thai Summit Stone Co., Ltd.," dated July 29, 2024 (Thai Summit Stone's RFI Response).

²¹ See CBP's Letter to Alila, "EAPA Case 7887: Supplemental Request for Information," dated September 17, 2024; CBP's Letter to Just Stone, "EAPA Case 7887: Supplemental Request for Information," dated September 17, 2024; CBP's Letter to Taimei, "EAPA Case 7887: Supplemental Request for Information," dated September 23, 2024; and CBP's Letter to Thai Summit Stone, "EAPA Case 7887: Supplemental Request for Information," dated September 18, 2024.

²² See Alila's Letter, "Response to Narrative EAPA Case No.7887," dated October 4, 2024; Just Stone's Letter, "EAPA Case Number 7887: Response to the Supplemental Request for Information for Just Stone Industry (Thailand) Co., Ltd.," dated October 10, 2024; Taimei's Letter, "EAPA Consolidated Case No. 7887 Responses To Supplemental Request For Information," dated October 14, 2024; and Thai Summit Stone's Letter, "EAPA Case Number 7887: Response to the Supplemental Request for Information for Thai Summit Stone Co., Ltd.," dated October 9, 2024.

²³ See CBP's Memorandum, "On-Site Verification Report, Enforce and Protect Act Consolidated Case Number: 7887," dated January 21, 2025 (Verification Report).

On December 2, 2024, CBP extended the deadline for final determination as to evasion until March 10, 2025.²⁴

On October 20, 2024, CBP postponed the deadlines for written arguments until after the release of the verification report.²⁵ On January 21, 2025, CBP set the deadlines for written arguments.²⁶ On January 30, 2025, BMA, Dorado, and Multistone submitted written arguments.²⁷ No party submitted rebuttal written arguments.

Analysis

Under 19 U.S.C. § 1517(c)(1)(A), to reach a determination as to evasion, CBP must “make a determination, based on substantial evidence, with respect to whether such covered merchandise entered into the customs territory of the United States through evasion.”²⁸ The term “covered merchandise” is defined as “merchandise that is subject to a CVD order ... and/or an AD order.”²⁹ The term “evasion” is defined as “the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the merchandise.”³⁰ As discussed below, substantial evidence on the record of these investigations establishes that Kingka entered covered merchandise through evasion.

Application of Adverse Inferences to Kingka

In making an evasion determination, 19 U.S.C. § 1517(c)(2) provides CBP the authority to “collect such additional information as is necessary to make the determination through such methods as the Commissioner considers appropriate, including by... issuing a questionnaire with respect to such covered merchandise to” the importer alleged to have engaged in evasion and the foreign producer of the covered merchandise. Further, 19 U.S.C. § 1517(c)(3) discusses the use of adverse inferences by CBP, stating that if CBP finds that a party “has failed to cooperate by not acting to the best of the party or person’s ability to comply with a request for information, the Commissioner may, in making a determination {of evasion}, use an inference that is adverse to the interests of that party or person in selecting from among the facts otherwise available to make

²⁴ See CBP’s Letter, “EAPA Case 7887: Notice of Extension of Determinations as to Evasion,” dated December 2, 2024.

²⁵ See CBP’s email, “EAPA Cons 7887: CBP Extension of Written Arguments Deadline,” dated October 20, 2024.

²⁶ See CBP’s email, “EAPA Cons 7887: Written Arguments Deadline,” dated January 21, 2025. The deadline for the submission of written arguments was extended on January 27, 2025. See CBP’s email, “EAPA Cons 7887: Written Arguments Deadline Extension,” dated January 27, 2025.

²⁷ See BMA’s Letter, “Investigation – EAPA Case 7887, Broadcreek Marketing Associates, Inc., Written Arguments,” dated January 30, 2024 (BMA’s Arguments); Dorado’s Letter, “Quartz Surface Products from the People’s Republic of China: EAPA Cons. Case No. 7887, Dorado Surfaces LLC’s Written Argument,” dated January 30, 2024 (Dorado’s Arguments); and Multistone’s Letter, “Quartz Surface Products from the People’s Republic of China, EAPA Cons. Case No. 7887: Dorado Surfaces LLC’s Written Argument,” dated January 30, 2024 (Multistone’s Arguments).

²⁸ See also 19 C.F.R. § 165.27(a) (implementing 19 U.S.C. § 1517).

²⁹ See 19 C.F.R. § 165.1.

³⁰ *Id.*

the determination.”³¹ Additionally, the regulation provides that if “the importer, or the foreign producer or exporter of the covered merchandise fails to cooperate and comply to the best of its ability with a request for information made by CBP, CBP may apply an inference adverse to the interests of that party in selecting from among the facts otherwise available to make the determination as to evasion”³² Thus, both the statute and implementing regulations are clear that CBP may apply an adverse inference to a party that does not, to the best of its ability, respond to CBP’s RFIs.

As discussed in detail above, CBP provided Kingka three opportunities to respond to the RFI and Kingka failed to respond. Kingka’s failure to participate in the investigation, and to respond to the RFI, precludes CBP from performing the necessary analysis of Kingka’s books and records to determine whether its imports of QSP entered the United States through evasion. Because Kingka failed to cooperate and comply to the best of its ability to respond to the RFI, in accordance with 19 U.S.C. § 1517(c)(3)(A) and 19 C.F.R. § 165.6, CBP is drawing inferences adverse to the interests of Kingka from the facts otherwise available on the administrative record.

At verification, CBP conducted sales and production traces for entries made by BMA, Dorado, and Multistone, but did not examine any information with respect to sales or production related to Kingka’s entries because Kingka did not respond to the RFI.³³ Moreover, no manufacturer attempted to provide information concerning Kingka at verification. As such, no information related to any products exported to Kingka were examined during the verification. In the NOI, CBP conducted an extensive analysis of Kingka’s CF28 response and concluded that:

Kingka’s CF28 Response contains untranslated documents, is incomplete and does not contain information to tie the raw materials to production or to tie production to the entry in question. Without this information, CBP is unable to determine that Thailand is the country of origin for Entry 6657.³⁴

Given that no information was gathered at verification by CBP concerning Kingka, and given that Kingka’s CF28 response did not provide information for CBP to determine the country of origin of the entry in question, the only information available on the record with respect to the country of origin of Kingka’s entries is found in the Kingka Allegation submitted by Cambria.³⁵ In selecting from among the facts otherwise available to make the determination as to evasion, we note the Kingka Allegation contains information indicating Chinese-origin QSP have been transshipped by Thai exporters.³⁶ As discussed in the NOI, Chinese QSP manufacturer Kung Fu Stone implies on its website that transshipment is occurring to avoid paying AD/CVD duties on

³¹ See 19 U.S.C. § 1517(c)(3).

³² See 19 C.F.R. § 165.6(a).

³³ See Verification Report at 13, where CBP indicated it selected entry transaction to examine at verification, but “did not select any transactions from Kingka because it did not respond to CBP’s RFIs.” *Id.* at 17, where CBP discusses tracing production records for entries made by the importers under investigation, and that we “conducted no production traces for any entries by Kingka.”

³⁴ See the NOI at 10. The CF28 requested information for only one of Kingka’s entries.

³⁵ See Kingka Allegation.

³⁶ *Id.* at 8 – 11 and Exhibits 8 – 10, which provides evidence that Chinese QSP producers may be transshipping Chinese-origin QSP through Thailand.

Chinese-origin QSP.³⁷ Record information indicates that several Chinese companies falsely claim to be brands of legitimate Thai QSP manufacturers, and make sales to the United States, as if the QSP were sourced from Thailand rather than China.³⁸ Therefore, CBP draws adverse inferences and determines that Kingka misrepresented the country of origin of its imports of QSP by claiming Thailand, rather than China, as the country of origin. As a result, Kingka's entries subject to this EAPA investigation will be subject to the China-wide entity rate for the *Orders*.

Lack of Evidence of Evasion by BMA, Dorado, and Multistone

The totality of information contained in the administrative record demonstrates a lack of substantial evidence that BMA, Dorado, and Multistone evaded the *Orders* by importing Chinese-origin QSP transshipped through Thailand. As noted above, BMA, Dorado, and Multistone provided timely responses to CBP's RFIs and SRFIs, and provided answers, as applicable, to the questions contained therein.

In addition, Alila, Just Stone, Taimei, and Thai Summit Stone provided timely responses to CBP's RFIs and SRFIs, and provided answers, as applicable, to the questions contained therein. Moreover, objective observations and information acquired during the onsite verifications of Alila, Just Stone, Taimei, and Thai Summit Stone largely resolved suspicions that these importers engaged in evasion. For example, CBP conducted employee interviews, asking key employees questions on the topics of sales, marketing, production, purchasing, and various potential inconsistencies found during our review of record information, as well as conducting plant tours of each manufacturing facility.³⁹ As reported in detail in the Verification Report, CBP found the information provided during the employee interviews was consistent with the information found in the RFI and SRFI responses.⁴⁰

At verification, for each of the manufacturers, CBP selected certain entries from BMA, Dorado, and Multistone to conduct traces of the sales and production through the companies' books and records, from the purchase of raw materials, through production, to shipment to the U.S. importers.⁴¹ CBP found no evidence that Chinese-origin QSP were comingled with QSP manufactured in Thailand for the entries in question. Moreover, no major discrepancies were found that would call into question whether the manufacturers produced the selected entries in question in Thailand.

In addition, CBP conducted extensive plant tours of each of the manufacturers.⁴² We observed three of the four manufacturers producing QSP. For [company], which [activities and time period],

³⁷ See the NOI at 3 – 4. Kung Fu Stone avoids using words like transshipment on its website. For example, King Fu Stone indicates that despite the *Order*, Chinese-origin QSP is readily available in the U.S. and that this is because “new approaches will always emerge as difficulties arise.” *Id.*, citing the Kingka Allegation at 9 and Exhibit 8.

³⁸ *Id.* at 4. Specifically, Chinese companies Kung Fu Stone and Silastone list Thai Summit Stone's address as their own. Thai Summit Stone indicated it has no relationship with these companies, and in fact, its website contains a warning that Silastone has been “impersonating” Thai Summit Stone. See the Kingka Allegation at Exhibit 9.

³⁹ See, generally, the Verification Report.

⁴⁰ *Id.*

⁴¹ *Id.* We examined entry numbers: [#]9559, [#]6905, [#]4206, [#]2822, [#]8592, [#]8950, [#]1020, [#]1730, [#]7678, [#]2530, [#]9277, [#]5717, [#]1576, [#]7160, and [#]1650.

⁴² *Id.*

CBP observed this company manufacture samples of QSP at our request.⁴³ CBP examined production equipment, purchase source documents and raw material purchases when the manufacturers began manufacturing QSP and noted few discrepancies.⁴⁴

After examining the evidence collected as part of BMA's, Dorado's, and Multistone's RFI and SRFI responses and the RFI and SRFI responses of Alila, Just Stone, Taimei, and Thai Summit Stone, coupled with the benefit of verification, CBP finds that the administrative record lacks substantial evidence that BMA, Dorado, and Multistone engaged in evasion of the *Orders*.

Written Arguments

Issue: Whether BMA, Dorado and Multistone Engaged in AD/CVD Duty Evasion

Comments by BMA, Dorado and Multistone:

Substantial evidence on the record of this investigation shows that the QSP produced by the Thai manufacturers are not covered merchandise.⁴⁵ The verification report provides evidence that the QSP manufacturers produced the QSP that were shipped to the importers in Thailand.⁴⁶ As such, no materially false statements or omissions were made by BMA, Dorado and Multistone with respect to the importation of QSP from the Thai manufactures. Therefore, CBP should issue a negative determination as to evasion.⁴⁷

In addition, Dorado contends that it provided timely responses to the RFI and SRFI, which indicated that the Thai manufacturers produced the entries at issue during the POI. Therefore, Dorado has fully cooperated with CBP during this investigation, and under these circumstances, no adverse inferences may be drawn against Dorado.⁴⁸

CBP's Position: BMA, Dorado, and Multistone all provided similar arguments that they did not engage in evasion and that the Thai manufacturers, as evidenced at verification, manufactured the Thai QSP that BMA, Dorado, and Multistone entered during the POI. As discussed above, CBP finds that the administrative record lacks substantial evidence that BMA, Dorado, and Multistone engaged in evasion of the *Orders*. Moreover, no adverse inferences have been applied to BMA, Dorado, or Multistone.

Actions Taken Pursuant to the Negative Determination as to Evasion

Based on an examination of the record, CBP determines that there is not substantial evidence to establish that BMA, Dorado, and Multistone entered merchandise covered by the *Orders* into the customs territory of the United States through evasion as defined by 19 U.S.C. § 1517(a)(5)(A). In consideration of CBP's determination that there is not substantial evidence that BMA,

⁴³ *Id.*

⁴⁴ *Id.*

⁴⁵ See BMA's Arguments at 1 – 4.

⁴⁶ See BMA's Arguments at 4 – 14; Dorado's Arguments at 2 – 4; and Multistone's Arguments at 8 – 10.

⁴⁷ See BMA's Arguments at 15; Dorado's Arguments at 5; and Multistone's Arguments at 10.

⁴⁸ See Dorado's Arguments at 4 – 5.

Dorado, and Multistone entered covered merchandise into the customs territory of the United States through evasion during the POI, CBP will reverse any interim actions taken with respect to entries subject to this investigation. CBP's negative determination as to evasion in this EAPA investigation does not preclude CBP or other agencies from pursuing other enforcement actions or penalties as may be appropriate.

Actions Taken Pursuant to the Affirmative Determinations of Evasion

In light of CBP's determination that Kingka entered merchandise into the customs territory of the United States through evasion, and pursuant to 19 U.S.C. § 1517(d) and 19 C.F.R. § 165.28, CBP will suspend or continue to suspend the liquidation for all entries imported by Kingka that are subject to this investigation and will continue such suspension until it is determined that liquidation of these entries is appropriate. For those entries previously extended in accordance with the interim measures, CBP will rate adjust and change those entries to type 03 and continue suspension until it is determined that liquidation of these entries is appropriate. CBP will also evaluate Kingka's continuous bonds in accordance with CBP's policies and may require single transaction bonds, as appropriate. None of the above actions precludes CBP or other agencies from pursuing additional enforcement actions or penalties.

Sincerely,



Victoria Cho
Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
Office of Trade